

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 6/30/26 TIME: 9:00 A.M. DEPT: G CASE NO: FL0001018

PRESIDING: HON. MATTHEW A. SIROKA

REPORTER:

CLERK: J. CHARIFA

PETITIONER: MARINA NARBUTOVICH

and

RESPONDENT: DZMITRY SKAREDAU

NATURE OF PROCEEDINGS: 1) REQUEST FOR ORDER – DISCOVERY – DISCOVERY FACILITATOR PROGRAM 2) REQUEST FOR ORDER – COMPEL – DISCOVERY FACILITATOR PROGRAM 3) REQUEST FOR ORDER – MODIFY SPOUSAL SUPPORT 4) REQUEST FOR ORDER – ATTORNEY’S FEES – PROPERTY CONTROL

RULING

Petitioner (Mother) filed a Request for Order (RFO) on April 27, 2026 for: (1) modification of Custody and Visitation of the parties’ child, Mark (DOB 08/28/2014), (2) modification of Child Support, (3) an EC §730/ FC §3111 custody evaluation, (5) therapy/reunification therapy, and (6) non-interference with court orders.

The Court ruled on the RFO on June 23, 2026, but continued the child support issue to June 30, 2026 to coincide with another set of RFOs. Mother filed an RFO on April 7, 2026 requesting discovery compliance. Father filed an RFO on May 13, 2026 requesting modification of spousal support, for a hearing on the date of separation and to compel discovery. Mother filed an RFO on May 22, 2026 requesting reimbursement for her travel to Belarus to collect evidence, a motion to compel further discovery responses and a motion for sanctions.

Date of Separation

Father urges the Court to set January 13, 2022, as the date of separation, but has not requested a bifurcated trial. Mother has not responded to the request at all. The parties have a Bench Bar Settlement Conference on July 29, 2026, and they can establish date of separation then.

Support Calculations

Father requests his income be re-calculated to exclude approximately \$1,500 per month in business income he states was erroneously included in his June 2025 Income and Expense Declaration (IED). Father avers his 2025 business profit and loss statements and tax returns confirm that he did not receive the \$1,500 per month, but he has not provided those documents. Father’s current IED does not include that \$1,500 monthly income. The Court will compute

support based on the current IED but Father is ordered to confidentially lodge his 2025 tax returns and profit and loss statements with the Court, as required by MCR Fam. Rule 7.13.

Father requests the Court impute income to Mother based on her failure to become self-supporting or generate any meaningful income since being issued a *Gavron* warning in November 2025 and again in January 2026. Mother has been receiving spousal support for approximately four years. She does not appear to have made meaningful efforts to become self-supporting. She has, however, shown industriousness in her prosecution of litigation in this case, including taking it upon herself to travel to Belarus to obtain evidence.

There is evidence that Mother worked in interior design and has at times been able to generate reasonable amounts of income. There is no reason the Court is aware of preventing her from working now. In the absence of more comprehensive vocational evaluation, and a determination of the relevant markets, the Court imputes minimum wage for purposes of modifying temporary spousal support.

Mother's timeshare is currently zero. When Mother has visits, her timeshare would increase to 1 hour/week (1%). The attached XSpouse is prepared using 0%, and the following monthly inputs for the parties:

Father:

1. \$16,667 in W2 income
2. \$1,333 deductions for his 401K
3. \$205 deductions for health insurance
4. \$117 HSA contribution.

Mother:

1. Imputed minimum wage of \$2,929

Using these inputs, child support is \$479 payable by Mother to Father. *Pendente lite* spousal support is \$2,535 payable by Father to Mother, for a net amount of \$2,056 payable by Father to Mother. See attached Xspouse calculation. The Court has jurisdiction to modify child support retroactive to April 27, 2026, and jurisdiction to modify spousal support retroactive to May 13, 2026. The Court makes the adjustment retroactive to June 1, 2026.

In addition, Mother is cautioned that the Court will consider issuing step down orders which will progressively decrease her spousal support.

Attorney Fees/Reimbursement

Mother seeks attorney fees in the amount of \$10,000 for reimbursement of travel to Belarus to collect evidence of Father's assets and income.

The Court can award attorney's fees where one party has a greater ability to pay attorney's fees. While Father has a greater ability to pay attorney's fee, Mother has not presented any evidence that the funds would be (or were) used to retain counsel. (Fam. Code §2030(a)(2).)

The Court can also award attorney's fees in a discovery dispute. (CCP §1033.5.) Mother presents no evidence to demonstrate how the \$10,000 was spent or any form of justification for it. Mother's request for attorney fees or discovery related reimbursement is DENIED.

Discovery Issues

The parties were referred to a discovery facilitator but either party has reported to the Court the results of the participation with the Discovery Facilitator. Nor has either party submitted a statement pursuant to MCR Fam 7.16(H). Therefore, the Court may presume the discovery issues are resolved. In addition, Father submitted a lengthy declaration that suggests he has required with all the requests for discovery. The discovery motions and attendant requests for sanctions are all DENIED.

Other Issues

Father's May 13, 2026, RFO fails to comply with the guidance of MCR Fam. Rules 7.8(A) and (D) in that he attaches prior orders of the Court and does not minimize the number of necessary attachments. Nor does his RFO comply with MCR Fam. Rule 7.13 which requires submission of financial documents and support calculations. And he failed to comply with MCR Fam 7.16(H). Counsel for Father is cautioned that future failures to comply with the Local Rules will be grounds for sanctions.

Counsel for Father is ordered to prepare the formal Findings and Orders After Hearing.

Fixed Shares	Father	Mother	Monthly figures		Cash Flow	Guideline	Proposed
#of children	1	0	2026				
% time with NCP	0.00 %	0.00 %	GUIDELINE		Comb. net spendable	14473	14473
Filing status	HH/MLA	SINGLE	Nets(adjusted)		Percent change	0%	0%
# exemptions	2 *	1 *	Father		Father		
Wages+salary	16667	0	Father	12120	Payment cost/benefit	-2056	-2056
Self-employed income	0	2929	Mother	2353	Net spendable income	10064	10064
Other taxable income	0	0	Total	14473	Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	70%	70%
Other nontaxable income	0	0	Addons	0	% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS	-479	Total taxes	4342	4342
401(k) employee contrib	1333	0	Marin SS	2535	Dep. exemption value	0	0
Adjustments to income	125	0	Total	2056	# withholding allowances	0	0
SS paid prev marriage	0	0	CS range: -385--479		Net wage paycheck	9777	9777
CS paid prev marriage	0	0			Mother		
Health insurance	205	0			Payment cost/benefit	2056	2056
Other medical expense	0	0			Net spendable income	4409	4409
Property tax expense	0	0			Change from guideline	0	0
Ded interest expense	0	0	Proposed		% of combined spendable	30%	30%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS	-479	Total taxes	576	576
Qual bus income ded	0	0	SS	2535	Dep. exemption value	0	0
Required union dues	0	0	Total	2056	# withholding allowances	0w	0w
Mandatory retirement	0	0	Saving	0	Net wage paycheck	0	0
Hardship deduction	0 *	0 *	Releases	0			
Other GDL deductions	0	0					
Child care expenses	0	0					

Father pays Guideline SS, Proposed SS

Mother pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information									
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	100 - 0	0	0	0	Father	479	Mother	479	Mother
Mark	100 - 0	0	0	0	Father	479	Mother	479	Mother

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 6/30/26 TIME: 9:00 A.M. DEPT: G CASE NO: FL0002618

PRESIDING: HON. MATTHEW A. SIROKA

REPORTER:

CLERK: J. CHARIFA

PETITIONER: EUN MI YANEZ

and

RESPONDENT: AYTHAMI YANEZ

NATURE OF PROCEEDINGS: 1) REQUEST FOR ORDER – CHILD/SPOUSAL SUPPORT
2) CASE PROGRESS CONFERENCE

RULING

Appearances required.